

Supreme Court sides with tech giants over legal shield for content

Justices decline to overhaul law protecting Google and Twitter from liability for material on their platforms



The legal cases stemmed from family members of victims who died in Isis attacks that alleged Twitter and Google had assisted the terror group, which used the companies' platforms to disseminate its content © AP

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The US Supreme Court on Thursday declined to overhaul legal protections for internet publishers in a pair of cases that had triggered concerns the laws governing online platforms could be radically changed.

The two cases marked the first time the US's highest court directly weighed in on Section 230 of the Communications Decency Act, which [protects online platforms](#) from legal liability over content posted by their users.

The justices' unanimous decision is a significant victory for big technology companies such as Google, Twitter and Facebook owner Meta, which have relied heavily on the protections granted by Section 230. Silicon Valley has long seen the law as foundational to the business models of many internet companies, empowering them to let users freely post on their sites without fear of liability while also providing legal protection in cases where they step in to moderate.

The debate around Section 230 has been politically fraught. [Big Tech](#) companies have faced a barrage of criticism in Washington, with Republicans claiming that they have used the law's protections to "censor" rightwing voices and Democrats arguing Section 230 has helped platforms skirt responsibility for failing to stop misinformation.

Tech groups have warned that watering down or removing these shields could force them to become more active in taking down content, since they would be more exposed to legal liability if they allow potential harmful material to stay on their sites.

The two cases stemmed from lawsuits brought by family members of victims who died in attacks by Isis. They alleged Google and Twitter had assisted the terrorist group, which used the companies' platforms to disseminate its content.

But the [court](#) ruled plaintiffs had failed to prove the companies were at fault. "Defendants' mere creation of their media platforms is no more culpable than the creation of email, cell phones, or the internet generally," they wrote in the decision on the Twitter case, which was published alongside that of the related Google case.

"Countless companies, scholars, content creators and civil society organisations who joined with us in this case will be reassured by this result," Google general counsel Halimah DeLaine Prado said in a statement. "We'll continue our work to safeguard free expression online, combat harmful content, and support businesses and creators who benefit from the internet."

Twitter did not immediately respond to a request for comment.

In Twitter vs Taamneh, which stems from a deadly Isis attack at a nightclub in Istanbul in 2017, the relatives of one victim accused Twitter, Facebook and Google of knowingly aiding the terror group by failing to stop its supporters from sharing their content using their sites.

In *Gonzalez vs Google*, the relatives of a 23-year-old American student killed in a 2015 Isis attack in Paris accused Google of breaking US anti-terrorist laws by hosting Isis videos on its YouTube platform and recommending related content to users via algorithms. They argued Section 230 was enacted before algorithms fundamentally altered how online content is recommended and absorbed.

But the court disagreed with placing blame on the algorithmic system, a win for online platforms which had warned that undermining algorithms could severely harm their ability to filter and direct content on the internet.

“[D]efendants’ recommendation algorithms are merely part of the infrastructure through which all the content on their platforms is filtered,” the justices wrote in their Twitter decision. “Moreover, the algorithms have been presented as agnostic as to the nature of the content.”

Additional reporting by Hannah Murphy

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